

Court No. - 21

Case :- WRIT - C No. - 3994 of 2023

Petitioner :- Rana Afroz

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ajay Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Counsel for the respondent-Electricity Department prays for and is granted time to obtain instruction particularly in reference to para 22 of the writ petition.

List as fresh on 15.2.2023.

Order Date :- 6.2.2023

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(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Heard Sri Harshit Chandra holding brief of Sri Ajay Kumar Srivastava, counsel for the petitioner and Sri Udit Chandra for the respondent Electricity Department.

The petitioner has challenged the demand notice dated 21.01.2022 issued by respondent no.5 for recovery of electricity dues in a case of theft of electricity.

Sri Udit Chandra, learned counsel for the Electricity Department states that the impugned demand notice has been withdrawn and that fresh proceedings will be undertaken after following the procedure prescribed under the Electricity Supply Code, 2005.

Accordingly, the petition is disposed of with liberty to the respondent Electricity Department to pass a fresh order after following the procedure prescribed under the Electricity Supply Code, 2005.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.2.2023

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